

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Barbara Handelman	)	Docket No. 2020-42
License No. 068.0000084	)	

STIPULATED VOLUNTARY SURRENDER OF LICENSE

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Respondent Barbara Handelman, who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the “Board”) has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Licensed Clinical Mental Health Counselors; issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearing, it finds that Respondent has engaged in unprofessional conduct. 3 V.S.A. §§129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Alleged Facts

2. Barbara Handelman (“Respondent”) of Norwich, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0000084. The license was first issued on May 25, 1990.
3. On April 14, 2017, Respondent sent signed correspondence to OPR stating “I am surrendering my license as a LCMH, effective 3/31/17.”
4. Between January 30, 2015 and August 26, 2016, Respondent engaged in an intentional scheme of false billing to Vermont Medicaid by submitting false claims in 14 instances where she claimed to have provided services to three clients who were Medicaid recipients when she did not render such services to those clients.
5. As a result of the conduct described above, Respondent was charged with the misdemeanor crime of False Pretenses or False Tokens \$900 or Less, a violation of 13 V.S.A. §2002, in October 2017.
6. On October 11, 2017, Respondent pled guilty to the charge and was fined \$722.00

Violation One: 3 V.S.A. §129a(a)(10) Conviction of a crime related to the practice of the profession or conviction of a felony, whether or not related to the practice of the profession.

7. Paragraphs 2 through 6 above are incorporated herein.
8. Paragraphs 2 through 6 above demonstrate that Respondent was convicted of a misdemeanor crime related to the practice of the profession, as she used her position as a licensed clinical mental health counselor to engage in a fraudulent billing scheme, intentionally charging Vermont Medicaid for services she did not actually render to the clients.
9. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional in violation of 3 V.S.A. §129a(a)(10).

Violation Two: 26 V.S.A §3239(4) Negligent, incompetent, or wrongful conduct in the practice of alcohol and drug abuse counseling.

10. Paragraphs 2 through 6 above are incorporated herein.
11. In Vermont, a licensed clinical mental health counselor is prohibited from engaging in wrongful conduct in the practice of alcohol and drug abuse counseling.
12. Paragraphs 2 through 6 demonstrate that Respondent engaged in wrongful conduct in the practice of alcohol and drug abuse counseling when she engaged in a scheme to defraud Vermont Medicaid by submitting false billing on fourteen occasions between 2015 and 2016, charging for services she did not actually render to the clients.
13. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 26 V.S.A § 3239(4).

Violation Three: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

14. Paragraphs 2 through 6 above are incorporated herein.
15. In Vermont, a licensed clinical mental health counselor must exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

16. Paragraphs 2 through 6 above demonstrate that Respondent failed to exercise independent professional judgment when she engaged in a scheme to defraud Vermont Medicaid by submitting false billing for three clients on fourteen occasions between 2015 and 2016.
17. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A §129a(a)(15).

Understandings

18. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.
19. Respondent understands that the Board must review and accept the terms of the Stipulated Voluntary Surrender of License. If the Board rejects any portion, the entire Stipulated Voluntary Surrender of License shall be null and void.
20. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her right to a fair and impartial hearing in the future if this agreement is not accepted by the Board.
21. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
22. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulated Voluntary Surrender of License.
23. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulated Voluntary Surrender of License.
24. Respondent voluntarily waives her right to a contested hearing before the Board of Allied Mental Health and waives any right to appeal from this Stipulated Voluntary Surrender of License.
25. Respondent agrees that the Acceptance of Voluntary Surrender and Order set forth below may be entered by the Board.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of her Clinical Mental Health Counselor license.
- B. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be **CONDITIONED** pursuant to whatever terms are found to be reasonable at the time of Respondent's application for licensure, taking into account the stipulated facts above.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 12/4/2020

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney

RESPONDENT

Dated: _____

By: _____
Barbara Handelman

APPROVED AND SO ORDERED:

VERMONT BOARD OF
ALLIED MENTAL HEALTH
PRACTITIONERS

Dated: December 17, 2020

By:  E-SIGNED by Tammy Austin
on 2020-12-17 10:45:51 EST
Chairperson

Date of Entry: 12/17/2020

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

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AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: _____

By: _____
Jennifer B. Colin
Prosecuting Attorney

RESPONDENT

Dated: December 5, 2020 By: Barbara Handelman
Barbara Handelman

APPROVED AND SO ORDERED:

VERMONT BOARD OF
ALLIED MENTAL HEALTH
PRACTITIONERS

Dated: December 17, 2020

By: _____
E-SIGNED by Tammy Austin
on 2020-12-17 10:45:59 EST
Chairperson

Date of Entry: December 17, 2020